



DECISION

Complaint No. : POS/80/2024/SGR-195

Name and address of the complainant : Mr. Ghulam Dastagir S/o Muhammad Khan,
R/o Muhalla Shahmeer Colony, Sanghar,
Taluka & District Sanghar.

Name of the Agency Complained against : Police Department

Name & Designation of Investigating Officer : Ghulam Shabir Memon,
Regional Director, Sanghar

Vetted by : Syed Hashim Raza Zaidi
Advisor-S

Subject : **REQUEST FOR RELEASE OF REMAINING 07 YEARS SALARIES & INCREMENT DUES OF THE COMPLAINANT.**

THE COMPLAINT:

Mr. Ghulam Dastagir filed a complaint on 03-12-2024 against Police Department, regarding release of his remaining 07 years salaries & increment dues. The complainant had frequently approached the concerned agency for redressal of his grievance, but to no avail. Aggrieved by that, he solicited the intervention of this Institution.

PROCEEDINGS:

2. The complaint was admitted under *Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (amended upto date)*, after receiving mandatory Affidavit on Form "A" and other relevant documents.
3. This office issued a letter dated **01-01-2025** to the Senior Superintendent of Police, Sanghar for a report on the subject matter. During the proceedings, the Senior Superintendent of Police, Sanghar submitted report dated 14.01.2025, in which he stated that HC/220 (Retired) Ghulam Dastgir was dismissed from service in 2000, due to involvement in a criminal case. He was later acquitted and reinstated in 2007, and his entire absence period (8 years, 1 month, 21 days) was treated as leave of the kind due. The leave balance was settled and paid in 2010 and all other dues were paid to the complainant in the year 2010, which was accepted and received by the complainant.
4. Subsequent appeals filed by the applicant before RPO Hyderabad and later before IGP Sindh were examined and rejected in the year 2014 and again in the year 2023.
5. The complainant retired from the service on 03-04-2021 and all pensionary/financial benefits have already been paid to him and according to the report of department; no remaining salary or other dues are pending.

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6. Meanwhile, a copy of the report was forwarded to the complainant for rejoinder vide letter dated **12-02-2025**, in which he raised some objections, which were forwarded to the agency for further report. In response the Senior Superintendent of Police, Sanghar submitted another report vide letter dated 12.05.2025, stating that he is not the authority to pay remaining arrears / dues to him, it is ~~the~~ requested that complainant may kindly be advice to prefer a mercy appeal / petition to the IGP Sindh Karachi. He further stated that the complainant was retired on superannuation pension on 03.04.2021 & has been paid all pensionary benefits / financial dues.

7. The hearing was again fixed on 22.07.2025, and the agency stated that application of complainant has already been rejected twice by the I.G.P. Sindh vide letter dated 14.01.2025.

FINDINGS:

8. On the intervention of this Institution, the facts of the case have been brought on the record to this Directorate wherein the mercy appeal was also rejected by the competent authority. The complainant did not approach services tribunal against the rejection of his appeal by the IGP Sindh, nor he approached any court of law.

DECISION:

9. In view of the above, in exercise of powers vested in me under Section 11 of the Establishment of the office of Ombudsman for the Province of Sindh Act, 1991 (amended up-to-date), the complaint is disposed of as rejected.

Given under my hand and seal of this office.



Sd /-

(MUHAMMAD SOHAIL RAJPUT)
Sitara-e-Imtiaz, PAS
Ombudsman Sindh,
Karachi, dated: 11/11 Feb. 2025